



**ITEMS PARTICULAR TO ONE MANUFACTURER (BRAND-NAME)
WHEN PLACED UNDER AN INDEFINITE DELIVERY INDEFINITE QUANTITY (IDIQ) CONTRACT
FAR 16.505(a)(4) and 16.505(b)(2)(ii)**

J&A-25-0042

1. Agency and Contracting Activity.

The Department of Homeland Security (DHS), U.S. Immigration and Customs Enforcement (ICE), Office of Acquisition Management (OAQ) proposes to award an IDIQ delivery order on behalf of the Office of Chief Information Officer (OCIO), Operations (OPS) Division/Enterprise Services Branch (ESB) resulting from a solicitation containing a brand-name specification.

2. Nature and/or description of the action being approved.

█ Name of the ICE, DHS, or Multiple-Agency Multiple Award Contract that the delivery/task order or modification is being placed under: NASA SEWP █
█

(b) If applicable, identify the functional category, size category, or other sub-section of awardees which will be provided a fair opportunity to be considered:

This procurement will be competed between the qualified NASA SEWPT vendors that are part of the █

(c) Identify contract type and whether new action or modification: Firm-Fixed-Price; new action.

(d) Dollar amount for this justification: █

█ Title of the required brand-name manufacturer and product: █

3. Description of Supplies/Services.

(a) ICE has a requirement to purchase the yearly hardware maintenance and software renewal for ICE's █ These network appliances are needed for maintaining IP address management throughout ICE's network environment.

(b) The period of performance will consist of one base year from March 17, 2025, to March 16, 2026.

(c) Include a table similar to the following for all actions:

Period	Time	Price	Total
Base	12 mos.	█	█
			█



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4. Statutory Exception and Rationale.

Exception:

The specific exception for providing for brand-name awards under multiple award contracts is Federal Acquisition Regulation (FAR) Subpart 16.505(a)(4). An item peculiar to one manufacturer can be a particular brand-name, product, or a feature of a product peculiar to one manufacturer. A brand-name item, even if available on more than one contract, is an item peculiar to one manufacturer.

Rationale:

OCIO requires the purchase of [REDACTED] maintenance and license renewal in order for the currently installed [REDACTED] to continue operating as intended. The [REDACTED] appliances are used in support of critical ICE network infrastructure.

Market research was conducted by the program office between 1/9/2025 and 1/16/2025. ICE conducted market research on the following product: [REDACTED] Maintenance and License Renewal. Specifically, no other products were able to interconnect and function with current ICE network architecture, maintenance platforms and configuration. Procuring an alternate product other than [REDACTED] hardware maintenance and licensing will require complete infrastructure replacement with a significant increase in cost.

There are no competing products for this requirement, as this is for a yearly maintenance hardware and software renewal for [REDACTED] products currently in place in ICE's network infrastructure. Infoblox was refreshed in FY2021, other competitors that were looked at during this period were [REDACTED]

[REDACTED] Address management. The appliance form factor allowed ICE to easily deploy this centrally managed platform into our data centers within minimal configuration. Unlike the competitors, all Infoblox appliances in a given deployment can be centrally managed "out of the box: with a single unified web interface, where software upgrades, high-availability clusters, disaster recovery support, DHCP failover, and DNS are available with no custom integration or third-party products required.

Infoblox will not be refreshed until it reaches its end-of-life cycle – at that time all other competitors will be considered.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.



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The Contracting Officer anticipates the price to be fair and reasonable based on the receipt of adequate price competition and comparison to historical pricing. Multiple DHS NASA SEWPT V contract holders provide these brand name products and services. The Government has reasonable expectation that at least two quotes will be received.

6. Any other facts supporting the justification.

N/A

7. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

OCIO will consider other products that may remove some of the barriers for more open competition in the future as the equipment nears its end of life.

8. If the total dollar value of this action exceeds \$30,000, OAQ intends to provide the justification and supporting documentation along with the solicitation to all (IDIQ) contract awardees under the DHS NASA SEWPT IDIQ under the WOSB category in accordance with FAR 16.505(a)(4)(iii)(A).



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9. Technical/Requirements Personnel Certification.

I certify that this requirement meets the Government's minimum need and that the supporting data, which form a basis for the Brand-Name Justification, are accurate and complete.

Technical Representative/COR

Date

10. Contracting Officer's Certification and Approval.

I hereby certify that the Brand-Name Justification is accurate and complete to the best of my knowledge and belief.

Contracting Officer

Date